

A petitioner is required to “...cause service of a notice of the petition under Section 2035.030 to be made on each natural person or organization named in the petition as an expected adverse party.” Code Civ. Proc. § 2035.040. **This service shall be made in the same manner provided for the service of a summons. *Id.***

Service must be effected at least 20 days prior to the date specified in the notice for the hearing on the petition. Code Civ. Proc. § 2035.040(c).

Since the last hearing date, Plaintiff filed a Notice of Hearing on February 6, 2026. That notice includes a Proof of Service reflecting service of the notice and the attached copy of the Court’s Minute Order with the prior tentative ruling. That service was done via electronic service on an attorney, Asher Hoffman.

In the absence of an express agreement to accept service of process, electronic service on a party’s attorney is not service “in the same manner provided for the service of a summons.” Code Civ. Proc. § 2035.040. Petitioner has not shown such an agreement. Nor has Petitioner shown service done in any manner prescribed for service of a summons. See Code Civ. Proc. § 415.10 *et seq.*

For this reason alone, the Court would deny the motion.

Merits

Even if service had been properly done, the Court would deny the motion.

As discussed in the prior tentative ruling, Petitioner has not demonstrated that Petitioner is entitled to resort to the Preservation of Evidence Statutes where the matter in dispute is subject to arbitration, as Petitioner appears to concede. In such instance, arguably it cannot be said that there is an expectation that the petitioner will be a party to an action cognizable in a court of the State of California. While the Court is not aware of any California authorities on point, other courts have so held. See e.g. *In re Schumacher* (La. Ct. App., 4th Cir. 1980) 389 So. 2d 881, 882 (trial court erred in granting appellee’s petition to perpetuate testimony because “[a]ppellee is bound to the arbitration provision of his agreement and is therefore unable to bring an action ‘cognizable in any court of this state’”).

Moreover, the present Petition does not attach any governing arbitration agreement or otherwise address the extent to which discovery may be available in the arbitration forum. If the arbitration forum provides for discovery or discovery-like mechanisms, it is not clear to the Court that resort to the Preservation of Evidence Statutes is necessary to prevent a failure or delay of justice. At the very least, Petitioner has failed to make such showing.

The Court’s prior order also gave Petitioner an opportunity to further address the merits. See Minute Order dated February 3, 2026 (“Counsel may file a supplemental paper regarding the need for the petition.”). Petitioner did not file anything further.

Disposition

The Court finds and rules as follows:

1. The Petition is DENIED.
2. The Court shall issue the order after hearing.

***HEARING ON MOTION IN RE: STRIKE COMPLAINT**

FILED BY: DESCOR, INC.

TENTATIVE RULING:

Defendant DesCor, Inc.'s motion to strike allegations in the complaint is **denied**. DesCor shall file and serve their answer within 10 days of notice of entry of the order.

Plaintiff Thomas Willis worked for DesCor, a construction company, in 2022 and 2023. He was laid off on November 16, 2023. Plaintiff filed this complaint for (1) failure to pay overtime, (2) breach of contract, (3) breach of implied-in-fact contract, (4) breach of the implied covenant of good faith and fair dealing, (5) deceit/ promissory fraud / fraudulent inducement and (6) violations of Business and Professions Code section 17200.

Code of Civil Procedure section 436 states that the Court *may* strike allegations that are "irrelevant, false or improper." Defendant seeks to strike the following allegations in the complaint: 26, 27, 28, 47, 48, 49, 55, 56, 57, 58, 59, 71, 75, 93, 94, 95, 96, 97, 98, 99, 102, 104, 107, and 123. Defendant also argues about striking paragraph 10, but that paragraph was not included in the motion.

There are two groups of allegations subject to this motion. First, allegations regarding the terms of the proposed severance agreement that Defendant offered Plaintiff. (Comp. ¶¶95-99, 102, 104, and 107.) Second, Defendant seeks to strike various allegations as irrelevant and/or prejudicial:

- Defendant's public statement about how it values its employees. (Comp. ¶¶26 – 28.)
- Allegations regarding other lawsuits involving Defendant. (Comp. ¶¶47 – 49.)
- An interaction with one of Defendant's co-founders at a company picnic and Defendant's refusal to pay for a larger room for Plaintiff and his family to attend the company Christmas party. (Comp. ¶¶55 – 59.)
- An interaction with Plaintiff's supervisor where the supervisor told Plaintiff he looked like a laborer. (Comp. ¶71.)
- An allegation that Defendant was trying to save money and there was a tension between Plaintiff's theoretical duties and the actual work. (Comp. ¶75.)
- An allegation that a letter from Defendant's attorney that Plaintiff was laid off is not consistent with the publicly available information about Defendant. (Comp. ¶123.)

With the exception of the communications regarding severance, which require additional discussion, the Court denies Defendant's motion to strike these paragraphs. Plaintiff is entitled to include allegations that might support his causes of action or provide background. Further, the claims of prejudice are premature. If Plaintiff seeks to present evidence on these matters to a jury then Defendant may re-raise their concern regarding prejudice.

Regarding the severance communications Defendant requests to strike some allegations regarding the proposed severance agreement and how the language included within it was false and Plaintiff thought that something was off about the agreement. (Comp. ¶¶93-99, 102, 104, 107.)

As an initial matter, the Court notes that Defendant did not request striking the summary of the proposed severance agreement including the amount offered in the settlement. (Comp. ¶91.) Thus, much of the proposed agreement, including the amount and the claim that Plaintiff resigned as opposed to being laid off, are included in the complaint.

Defendant argues that these allegations are inadmissible under Evidence Code section 1152(a). Section 1152(a) makes evidence of a promise to furnish money to someone who has sustained loss or damage, as well as conduct or statements made in negotiation, “inadmissible to prove his or her liability for the loss or damage or any part of it.” These communications can be admissible for other purposes. (see, e.g. *Fletcher v. Western National Life Ins. Co.* (1970) 10 Cal.App.3d 376, 396 (an offer to compromise can be admissible to prove the instrumentality of the tort); *Warner Constr. Corp. v. L.A.* (1970) 2 Cal.3d 285, 297, fn. 12 (a communication subject to section 1152 can be used to show that a party acted in good faith and to rebut defendant's claim that plaintiff failed to mitigate damages).)

Defendant argues that section 1152 applies to severance agreements. *Mangano v. Verity, Inc.*, (2009) 179 Cal.App.4th 217 held that a severance agreement is covered under section 1152 and thus, can be excluded from evidence at trial “for purposes of establishing liability.” (*Id.* at 222.) Nothing in *Mangano* addresses whether a severance agreement can be used for other purposes or whether it can be included in the complaint.

Defendant next argues that while *Mangano* addressed a motion in limine, it should apply here because “[t]he complaint's allegations are ““a judicial admission”” that concede ““the truth of [the] matter”” and have ““the effect of removing it from the issues.”” [Citation.]” (*Shirvanyan v. Los Angeles Community College Dist.* (2020) 59 Cal.App.5th 82, 100.) Defendant’s argument misses the point in *Shirvanyan* that allegations in a complaint act as judicial admissions against the drafting party, not the opposing party.

In conclusion, Defendant has not convinced the Court that the proposed severance agreement allegations are barred for all purposes and thus, the Court finds that there is no reason to strike them from the complaint.

12. 9:00 AM CASE NUMBER: L23-04858
CASE NAME: DISCOVER BANK VS. GEMMA SAMBI
***HEARING ON MOTION IN RE: ENTER JUDGMENT PURSUANT TO CCP 6646**
FILED BY: DISCOVER BANK
TENTATIVE RULING:

Plaintiff Discover Bank (“Plaintiff”) filed a Motion to Enter Judgment pursuant to Code of Civil Procedure section 664.6 on October 2, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to